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July 14, 2015					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-10

ECONOCARIBE CONSOLIDATORS, INC.

v.

AMOY INTERNATIONAL, LLC

ORDER REQUIRING JOINT STATUS REPORT

On July 6, 2015, Complainant Econocaribe Consolidators, Inc. (“Econocaribe”) and Respondent Amoy International, LLC (“Amoy”) filed a Joint Status Report which indicated that the parties were finalizing a settlement of their dispute. On July 13, 2015, a telephone status conference was held. The parties indicated that a final settlement had not been reached, but that settlement discussions were ongoing.

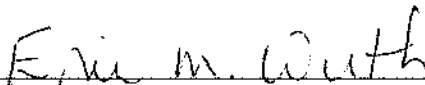
The Commission has a strong and consistent policy of “encourag[ing] settlements and engag[ing] in every presumption which favors a finding that they are fair, correct, and valid.” *Inlet Fish Producers, Inc. v. Sea-Land Serv., Inc.*, 29 S.R.R. 975, 978 (ALJ 2002), *quoting Old Ben Coal Co. v. Sea-Land Serv., Inc.*, 18 S.R.R. 1085, 1091 (ALJ 1978).

The law favors the resolution of controversies and uncertainties through compromise and settlement rather than through litigation The desire to uphold compromises and settlements is based upon various advantages which they have over litigation. The resolution of controversies by means of compromise and settlement is generally faster and less expensive than litigation; it results in a saving of time for the parties, the lawyers, and the courts, and it is thus advantageous to judicial administration, and, in turn, to government as a whole. Moreover, the use of compromise and settlement is conducive to amicable and peaceful relations between the parties to a controversy.

Old Ben Coal, 18 S.R.R. at 1092.

Pursuant to Commission Rule 91, if a "settlement is reached, it shall be submitted to the presiding judge who shall issue an appropriate decision or ruling." 46 C.F.R. 502.91(f). Therefore, if a settlement is reached, the parties should submit a copy of the settlement with a motion requesting approval. All settlement agreements will be reviewed to determine "whether the settlement appears to violate any law or policy and to ensure the settlement is free of fraud, duress, undue influence, mistake, or other defects which might make it unapprovable." 46 C.F.R. 502.72(a)(3). If the parties do not reach an agreement, an Initial Decision will be issued.

To avoid undue delay, the parties will be required to file a joint status report. Accordingly, it is hereby **ORDERED** that the parties file a joint status report by July 24, 2015.


Erin M. Wirth
Administrative Law Judge